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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:14-cv-02403-MSK-MJW

Rabidue v. Blatnick et al
Assigned to: Judge Marcia S. Krieger
Referred to: Magistrate Judge Michael J. Watanabe
Cause: 42:1983 Prisoner Civil Rights

Date Filed: 08/28/2014
Date Terminated: 06/13/2018
Jury Demand: Both
Nature of Suit: 550 Prisoner - Civil Rights
(U.S. not a defendant)
Jurisdiction: Federal Question

Plaintiff**Aaron S. Rabidue**

represented by **Ryan Matthew Sugden**
Stinson LLP
6400 South Fiddlers Green Circle
Suite 1900
Greenwood Village, CO 80111
303-376-8405
Fax: 612-335-1657
Email: Ryan.sugden@huschblackwell.com
ATTORNEY TO BE NOTICED

Zane Allen Gilmer
Stinson LLP
1144 15th Street
Suite 2400
Denver, CO 80265
303-376-8416
Fax: 303-578-7966
Email: zane.gilmer@stinson.com
ATTORNEY TO BE NOTICED

V.

Defendant

Nicole Blatnick
TERMINATED: 08/17/2017

represented by **Christopher W. Alber**
Cohen & Cohen, P.C.
1720 South Bellaire Street
Suite 205
Denver, CO 80222
303-933-4529
Email: calber@cohenlawyers.com
ATTORNEY TO BE NOTICED

Defendant

Tina Rosler
TERMINATED: 08/17/2017

represented by **Christopher W. Alber**
(See above for address)

ATTORNEY TO BE NOTICED

Defendant

Alvin Massenburg
TERMINATED: 08/17/2017

represented by **Christopher W. Alber**
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Jennifer Novatny
TERMINATED: 08/17/2017

represented by **Christopher W. Alber**
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Hong Dang

represented by **Christopher W. Alber**
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Trudy Sicotte
TERMINATED: 07/28/2015

represented by **Joseph Patrick Sanchez**
Ragab Law Firm PC
700 17th Street
Suite 900
Denver, CO 80202
720-712-0201
Email: joseph@ragablawfirm.com
ATTORNEY TO BE NOTICED

Defendant

Trudy (I) Sicotte
in her individual capacity
TERMINATED: 10/31/2014

Defendant

Nicole (I) Blatnick
in her individual capacity
TERMINATED: 10/31/2014

Defendant

Tina (I) Rosler
in her individual capacity
TERMINATED: 10/31/2014

Defendant

Alvin (I) Massenburg
in his individual capacity
TERMINATED: 10/31/2014

Defendant

Jennifer (I) Novatny
in her individual capacity
TERMINATED: 10/31/2014

Defendant

Long

Major

TERMINATED: 07/28/2015

represented by **Christopher W. Alber**

(See above for address)

ATTORNEY TO BE NOTICED

Defendant

Long (I)

in his individual capacity

TERMINATED: 10/31/2014

Defendant

Martinez

Chief Medical Officer

TERMINATED: 10/06/2015

represented by **Christopher W. Alber**

(See above for address)

ATTORNEY TO BE NOTICED

Defendant

Martinez (I)

in his individual capacity

TERMINATED: 10/31/2014

Defendant

Falk

Ms. in her official capacity as a Warden for

the Limon Correctional Facility- Colorado

Department of Corrections

TERMINATED: 10/31/2014

Defendant

Falk

Warden

TERMINATED: 07/28/2015

represented by **Christopher W. Alber**

(See above for address)

ATTORNEY TO BE NOTICED

Defendant

Hong (I) Dang

in her individual capacity

TERMINATED: 10/31/2014

Defendant

Rick Raemisch

in his official capacity as Executive Director

for the Colorado Department of

Corrections, John Doe in his officical as

Deputy Director of Prisons, Clinical

Services for the Colorado Department of

Corrections

TERMINATED: 10/31/2014

Defendant

Rick (I) Raemisch

in his individual capacity, John Doe in his

his individual capacity

TERMINATED: 10/31/2014

Date Filed	#	Docket Text
08/28/2014	1	Prisoner COMPLAINT against All Defendants, filed by Aaron S. Rabidue. (Attachments: # 1 Continuation of Main Document, # 2 Envelope)(sphil,) (Entered: 08/29/2014)
08/28/2014	2	Prisoner's MOTION and Affidavit for Leave to Proceed Under 28 U.S.C. 1915 by Plaintiff Aaron S. Rabidue. (sphil,) (Entered: 08/29/2014)
08/29/2014	3	Case assigned to Magistrate Judge Boyd N. Boland. Text Only Entry (sphil,) (Entered: 08/29/2014)
09/03/2014	4	ORDER Granting Leave to Proceed Pursuant to 28 U.S.C. § 1915; 2 Prisoner's Motion and Affidavit for Leave to Proceed Pursuant to 28 U.S.C. § 1915 is granted, by Magistrate Judge Boyd N. Boland on 9/3/14.(morti,) (Entered: 09/03/2014)
09/22/2014	5	LETTER re: 1 Complaint, by Rhonda Lindbergh on behalf of Aaron Rabidue. (Attachments: # 1 Envelope)(morti,) (Entered: 09/22/2014)
09/23/2014	6	Filing fee: \$ 5.00, receipt number 064871 (morti,) (Entered: 09/24/2014)
10/09/2014	7	ORDER Directing Plaintiff to File Amended Complaint, by Magistrate Judge Boyd N. Boland on 10/9/14. (morti,) (Entered: 10/09/2014)
10/31/2014	8	LETTER to the Court re: mailing of the filing fee, by Plaintiff Aaron S. Rabidue. (nmarb,) (Entered: 10/31/2014)
10/31/2014	9	(AMENDED) PRISONER COMPLAINT against Nicole Blatnick, Hong Dang, Falk(Ms., in her individual capacity), Long, Martinez, Alvin Massenburg, Jennifer Novatny, Tina Rosler, Trudy (I) Sicotte, filed by Aaron S. Rabidue. (Attachments: # 1 Envelope)(nmarb,) (Entered: 10/31/2014)
10/31/2014	10	(AMENDED) Prisoner COMPLAINT against Nicole Blatnick, Hong Dang, Falk(Ms., in her individual capacity), Long, Martinez, Alvin Massenburg, Jennifer Novatny, Tina Rosler, Trudy Sicotte, filed by Aaron S. Rabidue. (Attachments: # 1 Envelope)(slibi,) Modified on 10/31/2014 this is a duplicate filing of 9 (slibi,). (Entered: 10/31/2014)
11/14/2014	11	CASE REASSIGNED. This case is reassigned to Magistrate Judge Gordon P. Gallagher.All future pleadings should be designated as 14-cv-02403-GPG. (Text Only Entry) (kweck) (Entered: 11/14/2014)
12/19/2014	12	ORDER Drawing Case. This case shall be drawn to a presiding judge and, if appropriate, to a magistrate judge, by Magistrate Judge Gordon P. Gallagher on 12/19/2014. (slibi,) (Entered: 12/22/2014)
12/19/2014	13	CASE REASSIGNED pursuant to 12 Order. This case is reassigned to Magistrate Judge Michael J. Watanabe. All future pleadings should be designated as 14-cv-02403-MJW. (Text Only Entry) (slibi,) (Entered: 12/22/2014)
12/22/2014	14	Magistrate Judge Consent Form issued pursuant to Magistrate Judge Pilot Project to Assign Civil Cases to Full Time Magistrate Judges (slibi,) (Entered: 12/22/2014)
12/22/2014	15	ORDER Setting Status Conference and Setting Deadline for Filing of Pilot Program Consent Form, by Magistrate Judge Michael J. Watanabe on 12/22/2014. Pilot Program Consent Form due on or before 1/21/2015. Status Conference set for 2/4/2015 09:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. (slibi,) (Entered: 12/22/2014)
12/22/2014	16	CERTIFICATE of Service by Mail by Clerk of Court re 15 Order, to To The Case Manager/Inmate Coordinator of: Aaron S. Rabidue #154691, Limon Correctional Facility

		(LFC), 49030 State Highway 71, Limon, CO 80826. Text Only Entry (slibi,) (Entered: 12/22/2014)
12/22/2014	17	CERTIFICATE of Service by Clerk of Court re 10 Amended Complaint for Service of Process, (sphil,) (Entered: 12/22/2014)
12/22/2014	18	WAIVER OF SERVICE Returned Executed by Aaron S. Rabidue. Nicole Blatnick waiver sent on 12/22/2014, answer due 2/20/2015; Hong Dang waiver sent on 12/22/2014, answer due 2/20/2015; Hong (I) Dang waiver sent on 12/22/2014, answer due 2/20/2015; Falk(Warden) waiver sent on 12/22/2014, answer due 2/20/2015; Falk(Ms. in her official capacity as a Warden for the Limon Correctional Facility- Colorado Department of Corrections) waiver sent on 12/22/2014, answer due 2/20/2015; Long waiver sent on 12/22/2014, answer due 2/20/2015; Alvin Massenburg waiver sent on 12/22/2014, answer due 2/20/2015; Jennifer Novatny waiver sent on 12/22/2014, answer due 2/20/2015; Tina Rosler waiver sent on 12/22/2014, answer due 2/20/2015. (morti,) (Entered: 12/23/2014)
01/07/2015	19	LETTER regarding service and filing fee, by Plaintiff Aaron S. Rabidue. (slibi,) (Entered: 01/07/2015)
02/04/2015	20	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Status Conference held on 2/4/2015. Scheduling Conference / Show Cause Hearing set for 4/7/2015 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Pilot Program Consent Form due by 4/10/2015. Court Reporter: FTR - E. E. Miller. FTR: Courtroom A502. (emill) (Entered: 02/04/2015)
02/04/2015	21	ORDER TO SHOW CAUSE: Plaintiff shall appear by telephone and shall provide proof of service for Defendants Trudy Sicotte or Chief Medical Officer Martinez, or otherwise show cause why this case should not be dismissed as to Defendants Trudy Sicotte or Chief Medical Officer Martinez pursuant to Fed. R. Civ. P. 4(m) for failing to serve those defendants. Show Cause Hearing set for 4/7/2015 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. By Magistrate Judge Michael J. Watanabe on 2/4/2015. (emill) (Entered: 02/04/2015)
02/17/2015	22	LETTER requesting register of actions of case, by Plaintiff Aaron S. Rabidue. (slibi,) (Entered: 02/17/2015)
02/17/2015	23	MINUTE ORDER re: 22 Letter filed by Aaron S. Rabidue, by Magistrate Judge Michael J. Watanabe on 2/17/2015. ORDERED the Clerk of Court shall print a copy of the docket sheet in this case, along with a copy of this Order, and mail it to Petition at his address of record. (slibi,) (Entered: 02/18/2015)
02/17/2015	24	CERTIFICATE of Service by Mail by Clerk of Court re 23 Minute Order and docket sheet, to Aaron S. Rabidue #154691, Limon Correctional Facility (LCF), 49030 State Highway 71, Limon, CO 80826. Text Only Entry (slibi,) (Entered: 02/18/2015)
02/20/2015	25	MOTION for Extension of Time to File Answer or Otherwise Respond re 10 Amended Complaint, by Defendants Nicole Blatnick, Hong Dang, Falk, Long, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 02/20/2015)
02/23/2015	26	MINUTE ORDER granting 25 Motion for Extension of Time to Answer or Otherwise Respond, by Magistrate Judge Michael J. Watanabe on 2/23/2015. Nicole Blatnick answer due 2/27/2015; Hong Dang answer due 2/27/2015; Falk(Warden) answer due 2/27/2015; Long answer due 2/27/2015; Alvin Massenburg answer due 2/27/2015; Jennifer Novatny answer due 2/27/2015; Tina Rosler answer due 2/27/2015.(slibi,) (Entered: 02/23/2015)
02/26/2015	27	MOTION to Dismiss by Defendants Nicole Blatnick, Hong Dang, Falk, Long, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 02/26/2015)

03/23/2015	28	MOTION for Stay of Proceeding, by Plaintiff Aaron S. Rabidue. (slibi,) (Entered: 03/23/2015)
03/30/2015	29	MINUTE ORDER denying 28 Plaintiff's Motion for Stay of Proceeding. Plaintiff shall file a response to Defendant's Motion to Dismiss 27 or or before 5/11/2015. By Magistrate Judge Michael J. Watanabe on 3/30/2015.(emill) (Entered: 03/30/2015)
04/03/2015	30	MOTION to Stay <i>Discovery</i> by Defendants Nicole Blatnick, Hong Dang, Falk, Long, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 04/03/2015)
04/06/2015	31	MINUTE ORDER granting 30 Defendants Motion to Stay Discovery, as set forth in the order. Beyond the limited purpose of facilitating service of process, all discovery and other proceedings are hereby STAYED. Scheduling Conference 4/7/2015 09:00 AM is vacated. Show Cause Hearing 4/7/2015 09:00 AM is vacated; Show Cause Hearing reset for 6/9/2015 10:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. By Magistrate Judge Michael J. Watanabe on 4/6/2015.(emill) (Entered: 04/06/2015)
04/08/2015	32	MOTION to Reschedule Hearing, by Plaintiff Aaron S. Rabidue. (slibi,) (Entered: 04/08/2015)
04/08/2015	33	MINUTE ORDER denying as moot 32 Plaintiff's Motion to Reschedule Hearing, since the 4/7/15 hearing has already been vacated, by Magistrate Judge Michael J. Watanabe on 04/08/15.(nmarb,) (Entered: 04/08/2015)
04/20/2015	34	CERTIFICATE OF COMPLIANCE re 31 Order on Motion to Stay, by Defendants Nicole Blatnick, Hong Dang, Falk, Long, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 04/20/2015)
04/20/2015	35	RESTRICTED DOCUMENT - Level 3: by Defendants Nicole Blatnick, Hong Dang, Falk, Long, Alvin Massenburg, Jennifer Novatny, Tina Rosler.. (Alber, Christopher) (Entered: 04/20/2015)
04/20/2015	36	MINUTE ORDER; It is hereby ORDERED that Clerk of Court shall provide the addresses for Defendants Sicotte and Martinez, under seal, to the U.S. Marshal for service of process in this case. (See Docket No. 35.), by Magistrate Judge Michael J. Watanabe on 4/20/15. (morti,) (Entered: 04/20/2015)
04/22/2015	37	CERTIFICATE of Service by Clerk of Court re 36 Minute Order DOC Regarding Restricted Service, 10 Amended Prisoner Complaint for Service of Process on defendants Andrew Martinez and Trudy Sicotte (sphil,) (Entered: 04/22/2015)
05/01/2015	38	MOTION for Leave to Restrict by Defendants Nicole Blatnick, Hong Dang, Falk, Long, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 05/01/2015)
05/08/2015	39	MINUTE ORDER; 38 Defendant's Motion to Restrict Document (Doc.35) as a Level 3 Restricted Document is GRANTED finding that the interests to be served by restrictions outweigh the presumption of public access and that a Level 3 (Court-only) restriction is appropriate, by Magistrate Judge Michael J. Watanabe on 5/8/15.(morti,) (Entered: 05/08/2015)
05/11/2015	40	Plaintiff's RESPONSE to 27 MOTION to Dismiss, filed by Plaintiff Aaron S. Rabidue. (Attachments: # 1 Envelope)(morti,) (Entered: 05/11/2015)
05/14/2015	41	RESTRICTED DOCUMENT - Level 3. (morti,) (Entered: 05/15/2015)

05/14/2015	42	SUMMONS Returned Executed Trudy Sicotte served on 5/8/2015, answer due 5/29/2015. (morti,) (Entered: 05/15/2015)
05/26/2015	43	CASE REASSIGNED. Consent not achieved. Deadline has lapsed. This case is reassigned to Chief Judge Marcia S. Krieger. As no Order of Reference has been entered, all future pleadings should be designated as 14-cv-02403-MSK. In the event an Order of Reference is entered, the case should be designated 04-cv-02403-MSK-MJW (Text Only Entry) (emill) (Entered: 05/26/2015)
05/27/2015	44	ORDER REFERRING CASE to Magistrate Judge Michael J. Watanabe: IT IS ORDERED that pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this matter is referred to the assigned United States Magistrate Judge to: (1) Convene a scheduling conference under Fed. R. Civ. P. 16(b), enter a Scheduling Order meeting the requirements of D.C.COLO.LCivR 16.2, enter such orders as appropriate to enforce the Scheduling Order, and resolve discovery matters;(2)ADR: Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, the Court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding;(3)Hear and determine referred matters in accordance with 28 U.S.C. § 636(b)(1)(A) and (B). by Chief Judge Marcia S. Krieger on 5/27/15. Text Only Entry (msksec,) (Entered: 05/27/2015)
05/27/2015	45	ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS USED IN EVIDENTIARY HEARINGS AND TRIALS: Any exhibits and depositions used during evidentiary hearings or trials, counsel for the parties shall retrieve the originals of such exhibits and depositions from the Court following the evidentiary hearing or trial, and shall retain same for 60 days beyond the later of the time to appeal or conclusion of any appellate proceedings. The Court will retain its copy of the exhibits for the same time period after which the documents will be destroyed. by Chief Judge Marcia S. Krieger on 5/27/15. Text Only Entry (pglov) (Entered: 05/27/2015)
05/29/2015	46	MEMORANDUM regarding 27 MOTION to Dismiss filed by Falk, Long, Hong Dang, Alvin Massenburg, Nicole Blatnick, Tina Rosler, Jennifer Novatny. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 5/29/15. Text Only Entry (msksec,) (Entered: 05/29/2015)
05/29/2015	47	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE Recommending 27 Defendants' Motion to Dismiss be GRANTED IN PART and DENIED IN PART, by Magistrate Judge Michael J. Watanabe on 5/29/2015. (emill) (Entered: 05/29/2015)
05/29/2015	48	NOTICE of Entry of Appearance by Joseph Patrick Sanchez on behalf of Trudy SicotteAttorney Joseph Patrick Sanchez added to party Trudy Sicotte(pty:dft) (Sanchez, Joseph) (Entered: 05/29/2015)
05/29/2015	49	<i>Defendent Trudy Sicotte's</i> ANSWER to 10 Amended Complaint, by Trudy Sicotte. (Sanchez, Joseph) (Entered: 05/29/2015)
06/03/2015	50	RESTRICTED DOCUMENT - Level 3. Return of Service on Andrew Martinez on 6/2/2015 (morti,) Modified on 6/3/2015 to include who was served (morti,). (Entered: 06/03/2015)
06/03/2015	51	MINUTE ORDER Order to Show Cause 21 is discharged. Show Cause Hearing set 6/9/2015 10:00 AM is VACATED. By Magistrate Judge Michael J. Watanabe on 6/3/2015. (emill) (Entered: 06/03/2015)

06/11/2015	52	RESTRICTED DOCUMENT - Level 3: Process Receipt and Return as to Defendant Martinez. (morti,) (Entered: 06/12/2015)
06/20/2015	53	MOTION for Extension of Time to File Answer or Otherwise Respond re 10 Amended Complaint, by Defendant Martinez. (Alber, Christopher) (Entered: 06/20/2015)
06/22/2015	54	MINUTE ORDER; The Clerk of Court is hereby directed to update Plaintiffs address of record to reflect: Aaron Rabidue, #154691, Kit Carson Correctional Facility, P.O. Box 2000, Burlington, CO 80807. It is further ORDERED that Plaintiffs deadline to file an objection to the Courts Report & Recommendation of May 29, 2015 47 is EXTENDED to July 20,2015. It is further ORDERED that the Clerk of Court shall mail a copy of this Order anda copy of the Courts Report & Recommendation of May 29, 2015 47 toPlaintiff at his new address, by Magistrate Judge Michael J. Watanabe on 6/22/15. (morti,) (Entered: 06/22/2015)
06/22/2015	55	CERTIFICATE of Service by Mail by Clerk of Court re 54 Minute Order, and 47 RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE, to Aaron S. Rabidue, #154691, Kit Carson Correctional Center (KCCC), P.O. Box 2000, Burlington, CO 80807. Text Only Entry (morti,) (Entered: 06/22/2015)
06/24/2015	56	MEMORANDUM regarding 53 MOTION for Extension of Time to File Answer or Otherwise Respond re 10 Amended Complaint, filed by Martinez. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 6/24/15. Text Only Entry (msksec,) (Entered: 06/24/2015)
06/24/2015	57	MINUTE ORDER; 53 Defendant Andrew Martinezs Motion for Extensionof Time to File Answer or Otherwise Respond is GRANTED. Martinez answer due on or before 7/6/2015, by Magistrate Judge Michael J. Watanabe on 6/24/15.(morti,) (Entered: 06/24/2015)
07/06/2015	58	MOTION to Dismiss by Defendant Martinez. (Alber, Christopher) (Entered: 07/06/2015)
07/28/2015	59	ORDER adopting Report and Recommendation 47 and granting in part and denying in part 27 Motion to Dismiss: The deadline for filing Objections to the Recommendation have passed (including providing sufficient time for Mr. Rabidue to file objections under the Prison Mailbox Rule) and no party has filed any such Objections. The Court has reviewed the Recommendation under the otherwise applicable de novo standard of Fed. R. Civ. P. 72(b), and upon such de novo review, agrees with the reasoning and conclusions set forth by the Magistrate Judge. Accordingly, the Court adopts the Recommendation and grants in part and denies in part the Defendants' Motion to Dismiss as set forth therein. All claims against Defendants Falk, Long, and Sicotte are dismissed, the Clerk of the Court shall terminate these Defendants as parties, and the caption of the case is deemed amended to omit reference to them. By Chief Judge Marcia S. Krieger on 7/28/15. Text Only Entry(msklc2,) (Entered: 07/28/2015)
07/31/2015	60	MOTION for Extension of Time to File Answer or Otherwise Respond re 58 MOTION to Dismiss by Plaintiff Aaron S. Rabidue. (cthom,) (Entered: 07/31/2015)
08/11/2015	61	MEMORANDUM regarding 60 MOTION for Extension of Time to File Answer or Otherwise Respond re 58 MOTION to Dismiss filed by Aaron S. Rabidue. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 8/11/15. Text Only Entry (msksec,) (Entered: 08/11/2015)
08/11/2015	62	MEMORANDUM regarding 58 MOTION to Dismiss filed by Martinez. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 8/11/15. Text Only Entry (msksec,) (Entered: 08/11/2015)

08/11/2015	63	MINUTE ORDER granting 60 Motion for Extension of Time, by Magistrate Judge Michael J. Watanabe on 8/11/2015.(slibi,) (Entered: 08/11/2015)
08/11/2015	64	ANSWER to 9 Amended Complaint, by Nicole Blatnick, Hong Dang, Martinez, Alvin Massenburg, Jennifer Novatny, Tina Rosler.(Alber, Christopher) (Entered: 08/11/2015)
08/14/2015	65	RESPONSE to 58 MOTION to Dismiss filed by Plaintiff Aaron S. Rabidue. (dkals,) (Entered: 08/14/2015)
09/09/2015	66	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 58 granting MOTION to Dismiss filed by Martinez, by Magistrate Judge Michael J. Watanabe on 9/09/2015. (slibi,) (Entered: 09/09/2015)
10/06/2015	67	ORDER adopting Report and Recommendations 66 and granting 58 Motion to Dismiss. Proper notice having been given, no timely response or objection having been filed, and there appearing no clear error, the Recommendation is adopted and is the Order of this Court. All claims against Defendant Martinez are DISMISSED. by Chief Judge Marcia S. Krieger on 10/6/2015. Text Only Entry(msk,) (Entered: 10/06/2015)
11/03/2015	68	MINUTE ORDER Scheduling/Planning Conference set for 12/10/2015 10:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. The stay of proceedings 31 is LIFTED. Defendants shall electronically file a proposed scheduling order no later than 12/03/2015, by Magistrate Judge Michael J. Watanabe on 11/03/2015. (slibi,) (Entered: 11/03/2015)
12/03/2015	69	Proposed Scheduling Order by Defendants Nicole Blatnick, Hong Dang, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 12/03/2015)
12/10/2015	70	MINUTE ENTRY for proceedings held before Magistrate Judge Michael J. Watanabe: Scheduling Conference held on 12/10/2015. Discovery due by 4/11/2016. Dispositive Motions due by 5/11/2016. FTR: VP Barnes. (vbarn) (Entered: 12/10/2015)
12/10/2015	71	SCHEDULING ORDER: Entered by Magistrate Judge Michael J. Watanabe on 12/10/2015. (vbarn) (Entered: 12/10/2015)
12/10/2015	72	CERTIFICATE of Service by Mail by Clerk of Court re 67 Order Report and Recommendations, and Docket Sheet, to Aaron S. Rabidue, #154691, Kit Carson Correctional Center, 49777 County Road V, Burlington, CO 80807. Text Only Entry (vbarn) (Entered: 12/10/2015)
12/14/2015	73	TRIAL PREPARATION ORDER - CIVIL by Chief Judge Marcia S. Krieger on 12/14/15. Text Only Entry (msksec,) (Entered: 12/14/2015)
01/15/2016	74	MOTION for Appointment of Pro Bono Representation Pursuant to D.C.Colo LAttyR 15(f)(1) by Plaintiff Aaron S. Rabidue. (dkals,) (Entered: 01/15/2016)
01/19/2016	75	MEMORANDUM regarding 74 MOTION to Appoint Counsel filed by Aaron S. Rabidue. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 1/19/16. Text Only Entry (msksec,) (Entered: 01/19/2016)
01/22/2016	76	MINUTE ORDER granting 74 Motion for Appointment of Pro Bono Counsel, by Magistrate Judge Michael J. Watanabe on 1/22/2016.(slibi,) (Entered: 01/22/2016)
01/22/2016	77	ORDER APPOINTING PRO BONO COUNSEL pursuant to D.C.COLO.LAttyR 15(e) (1), by Magistrate Judge Michael J. Watanabe on 1/22/2016. (slibi,) (Entered: 01/22/2016)
02/22/2016	78	REPLY to Magistrate's Recommendation by Plaintiff Aaron S. Rabidue. (dkals,) (Entered: 02/23/2016)

02/29/2016	79	LETTER by Plaintiff Aaron S. Rabidue. (dkals,) (Entered: 03/01/2016)
02/29/2016	80	REPLY to Magistrate's Recommendation by Plaintiff Aaron S. Rabidue. (dkals,) (Entered: 03/01/2016)
03/07/2016	81	Notice of Pro Bono Appointment. Attorney Zane Gilmer of the law firm of Stinson Leonard Street LLP has been selected as counsel to represent the Plaintiff, in accordance with the Court's Order of January 22, 2016 and D.C.COLO.LAttyR 15(f) of the U.S. District Court's Local Rules of Practice. Counsel has thirty days to either enter an appearance in the case or to file a Notice Declining Appointment. This Notice of Appointment will be sent to the pro se litigant and selected counsel by the undersigned designated clerk. (ebutl) (Entered: 03/07/2016)
03/28/2016	82	Plaintiff's Motion for Change of Address by Plaintiff Aaron S. Rabidue. (agarc,) (Entered: 03/28/2016)
04/05/2016	83	NOTICE of Entry of Appearance by Zane Allen Gilmer on behalf of Aaron S. RabidueAttorney Zane Allen Gilmer added to party Aaron S. Rabidue(pty:pla) (Gilmer, Zane) (Entered: 04/05/2016)
04/05/2016	84	NOTICE of Entry of Appearance by Ryan Matthew Sugden on behalf of Aaron S. RabidueAttorney Ryan Matthew Sugden added to party Aaron S. Rabidue(pty:pla) (Sugden, Ryan) (Entered: 04/05/2016)
04/06/2016	85	NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 84 Notice of Entry of Appearance :Zane Allen Gilmer has failed to comply with D.C.COLO.LCivR5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil Cases) which mandate that the s/ signature must match the filers name on the account for which the login and password are registered. (Text Only Entry) (dkals,) (Entered: 04/06/2016)
04/06/2016	86	NOTICE of Entry of Appearance by Ryan Matthew Sugden on behalf of All Plaintiffs Attorney Ryan Matthew Sugden added to party Aaron S. Rabidue(pty:pla) (Sugden, Ryan) (Entered: 04/06/2016)
04/11/2016	87	Unopposed MOTION to Amend/Correct/Modify 71 Scheduling Order by Plaintiff Aaron S. Rabidue. (Gilmer, Zane) (Entered: 04/11/2016)
04/12/2016	88	MEMORANDUM regarding 87 Unopposed MOTION to Amend/Correct/Modify 71 Scheduling Order filed by Aaron S. Rabidue. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 4/12/16. Text Only Entry (msek,) (Entered: 04/12/2016)
04/12/2016	89	MINUTE ORDER granting 87 Plaintiff's Unopposed Motion to Amend Scheduling Order. Scheduling Order 71 is amended. Discovery due by 8/9/2016. Dispositive Motions due by 9/8/2016. By Magistrate Judge Michael J. Watanabe on 4/12/2016. (emill) (Entered: 04/12/2016)
04/19/2016	90	Unopposed MOTION to Amend/Correct/Modify 71 Scheduling Order by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 04/19/2016)
04/20/2016	91	MEMORANDUM regarding 90 Unopposed MOTION to Amend/Correct/Modify 71 Scheduling Order filed by Aaron S. Rabidue. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 4/20/16. Text Only Entry (msek,) (Entered: 04/20/2016)
04/20/2016	92	MINUTE ORDER granting 90 Unopposed Motion to Amend Scheduling Order, by Magistrate Judge Michael J. Watanabe on 4/20/2016.(slibi,) (Entered: 04/20/2016)

09/08/2016	93	Unopposed MOTION to Amend/Correct/Modify 71 Scheduling Order by Defendants Nicole Blatnick, Hong Dang, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 09/08/2016)
09/08/2016	94	MEMORANDUM regarding 93 Unopposed MOTION to Amend/Correct/Modify 71 Scheduling Order filed by Hong Dang, Alvin Massenburg, Nicole Blatnick, Tina Rosler, Jennifer Novatny. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 9/8/16. Text Only Entry (msksec,) (Entered: 09/08/2016)
09/09/2016	95	MINUTE ORDER granting 93 Defendants' Unopposed Motion to Modify Scheduling Order. Scheduling Order 71 is modified. Dispositive Motions due by 9/29/2016. By Magistrate Judge Michael J. Watanabe on 9/9/2016.(emill) Modified on 9/9/2016 to edit file date (slibi,). (Entered: 09/08/2016)
09/29/2016	96	MOTION for Summary Judgment by Defendants Nicole Blatnick, Hong Dang, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Attachments: # 1 Exhibit A-1 Novatny Interrogatories, # 2 Exhibit A-2 Novatny Depo, # 3 Exhibit A-3 Blatnick Depo, # 4 Exhibit A-4 Blatnick Medical Records, # 5 Exhibit A-5 Cullyford Depo, # 6 Exhibit A-6 Cullyford Medical Records, # 7 Exhibit A-7 Massenburg Depo, # 8 Exhibit A-8 Massenburg Medical Records, # 9 Exhibit A-9 Bruntz First, # 10 Exhibit A-10 Bruntz Second, # 11 Exhibit A-11 Bruntz Third, # 12 Exhibit A-12 Dang Depo, # 13 Exhibit A-13 Dang Medical Records)(Alber, Christopher) (Entered: 09/29/2016)
10/11/2016	97	Unopposed MOTION for Extension of Time to File Response/Reply as to 96 MOTION for Summary Judgment by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/11/2016)
10/11/2016	98	ERRATA to <i>Unopposed Motion for Extension of Time to Include Certificate of Service on Plaintiff</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/11/2016)
10/12/2016	99	ORDER granting 97 Motion for Extension of Time to File Response/Reply. Extension granted up to and including November 14, 2016. by Chief Judge Marcia S. Krieger on 10/12/16. Text Only Entry(msksec,) (Entered: 10/12/2016)
11/14/2016	100	RESPONSE to 96 MOTION for Summary Judgment filed by Plaintiff Aaron S. Rabidue. (Attachments: # 1 Ex 1 Declaration of Rabidue, # 2 Ex 1 Cullyford Deposition Excerpts, # 3 Ex 3 Nursing Protocol Fractures, # 4 Ex 4 Blatnick Deposition Excerpts, # 5 Ex 5 Massenburg Deposition Excerpts, # 6 Ex 6 Xray Request, # 7 Ex 7 Xray Results, # 8 Ex 8 Bruntz Deposition Excerpts, # 9 Ex 9 Blatnick Depo. Ex 3, # 10 Ex 10 Health Record 4-14-14, # 11 Ex 11 Nurse Protocol Sprains, # 12 Ex 12 Dang Deposition Excerpts, # 13 Ex 13 Denver Health Records, # 14 Ex 14 Rabidue Kites, # 15 Ex 15 Massenburg Depo. Ex 8)(Sugden, Ryan) (Entered: 11/14/2016)
12/01/2016	101	Unopposed MOTION for Extension of Time to File Response/Reply as to 96 MOTION for Summary Judgment by Defendants Nicole Blatnick, Hong Dang, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Alber, Christopher) (Entered: 12/01/2016)
12/02/2016	102	ORDER granting 101 Motion for Extension of Time to File Response/Reply to Motion for Summary Judgment. Extension granted up to and including December 12, 2016. by Chief Judge Marcia S. Krieger on 12/2/16. Text Only Entry (msksec,) (Entered: 12/02/2016)
12/08/2016	103	REPLY to Response to 96 MOTION for Summary Judgment filed by Defendants Nicole Blatnick, Hong Dang, Alvin Massenburg, Jennifer Novatny, Tina Rosler. (Attachments: # 1 Exhibit A-14, # 2 Exhibit A-15)(Alber, Christopher) (Entered: 12/08/2016)
08/17/2017	104	Opinion and ORDER on Motion for Summary Judgment. The Defendants' Motion for Summary Judgment (# 96) is GRANTED IN PART and DENIED IN PART. Specifically,

		the motion is GRANTED as to Nicole Blatnick, Tina Rosler, and Alvin Massenburg. No party having requested certification of judgment pursuant to Rule 54(b), and the Court finding it imprudent to do so at this time, judgment shall not enter against these Defendants until the conclusion of proceedings against all remaining Defendants. Mr. Rabidues claim against Jennifer Novatny is DISMISSED, with prejudice. The motion is DENIED as to Hong Dang; Mr. Rabidue's claim against her shall proceed to trial. The parties jointly will contact chambers within 14 days to schedule a final pretrial conference. Mr. Rabidue shall also show cause within 14 days why his claim against Deputy Director of Prisons John Doe should not be dismissed. By Chief Judge Marcia S. Krieger on 8/17/2017. (agarc,) (Entered: 08/17/2017)
08/30/2017	105	ORDER: Pretrial Conference set for 10/19/2017 at 10:00 AM. By Chief Judge Marcia S. Krieger on 8/30/17. Text Only Entry (msklc2,) (Entered: 08/30/2017)
08/30/2017	106	RESPONSE to 104 Order on Motion for Summary Judgment,,, <i>Plaintiff's Response to Order to Show Cause</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 08/30/2017)
08/30/2017	107	ORDER: Pursuant to Mr. Rabidue's response 106 to the Court's Order to Show Cause, all claims against Ddefendant Deputy Director of Prisons John Doe are dismissed for failure to effectuate service under Fed. R. Civ. P. 4(m). The Clerk of the Court shall terminate this Defendant. By Chief Judge Marcia S. Krieger on 8/30/17. Text Only Entry (msklc2,) (Entered: 08/30/2017)
10/06/2017	108	MOTION for Writ of Habeas Corpus ad testificandum by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/06/2017)
10/06/2017	109	Unopposed MOTION for Leave to Appear <i>by Telephone at Pretrial Conference</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/06/2017)
10/12/2017	110	ORDER granting 109 Motion for Leave to Appear: Mr. Rabidue may appear at the Pretrial Conference by telephone. His counsel shall make appropriate arrangements with the Courtroom Deputy, Patti Glover, at 303-335-2185 prior to the conference date. By Chief Judge Marcia S. Krieger on 10/12/17. Text Only Entry (msklc2,) (Entered: 10/12/2017)
10/12/2017	111	ORDER denying 108 Motion for Writ of Habeas Corpus ad Testificandum: The motion is denied without prejudice. When a state prisoner's presence is requested at trial, a wide array of concerns are implicated, including the cost and logistics of state authorities transporting the inmate to Denver, the need for U.S. Marshal services to supervise the prisoner while in the courthouse and the associated costs, the costs and logistics of state authorities housing the inmate locally for the duration of trial, and various other concerns. This Court does not reflexively assume that an inmate plaintiff will necessarily appear in person at trial, particularly where the inmate's appearance can effectively be secured by real-time videoconference from his assigned facility, supplemented by a telephone connection to counsel to provide an opportunity to confer privately. See <i>Laratta v. Foster</i> , D.C. Colo. Case No. 12-cv-2079 at Docket #190 (10th Circuit affirming this Court's decision to have inmate plaintiff appear at jury trial via videoconference). An inmate requesting leave to appear in-person at trial must demonstrate that he has conferred with state authorities and the U.S. Marshal to ensure that all cost, transportation, security, and logistical matters have been addressed to the satisfaction of those officials. Because Mr. Rabidue's motion does not address those concerns, it is denied without prejudice. By Chief Judge Marcia S. Krieger on 10/12/17. Text Only Entry (msklc2,) (Entered: 10/12/2017)
10/12/2017	112	Proposed Voir Dire by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/12/2017)

10/12/2017	113	Proposed Pretrial Order by Plaintiff Aaron S. Rabidue. (Attachments: # 1 Joint Witness List, # 2 Joint Exhibit List)(Sugden, Ryan) (Entered: 10/12/2017)
10/12/2017	114	STIPULATION <i>Stipulated Facts by Parties</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/12/2017)
10/12/2017	115	Unopposed MOTION for Extension of Time to <i>File Jury Instructions and Defendant's Proposed Voir Dire</i> by Defendant Hong Dang. (Alber, Christopher) (Entered: 10/12/2017)
10/13/2017	116	ORDER granting 115 Motion for Extension of Time. The Defendant's proposed jury instructions and voir dire are now due today, October 13, 2017. By Chief Judge Marcia S. Krieger on 10/13/2017. Text-Only Entry (msklc3) (Entered: 10/13/2017)
10/13/2017	117	Proposed Jury Instructions (<i>Plaintiff's</i>) by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/13/2017)
10/13/2017	118	Proposed Jury Instructions (<i>Joint</i>) by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/13/2017)
10/13/2017	119	Proposed Jury Instructions by Defendant Hong Dang. (Alber, Christopher) (Entered: 10/13/2017)
10/13/2017	120	Proposed Voir Dire by Defendant Hong Dang. (Alber, Christopher) (Entered: 10/13/2017)
10/19/2017	121	MINUTE ENTRY for Final Pretrial Conference held before Chief Judge Marcia S. Krieger on 10/19/2017. Motion re plaintiff's present at trial due by 10/31/2017. Jury Trial set for 12/19-20/2017 08:30 AM in Courtroom A 901 before Chief Judge Marcia S. Krieger. Court Reporter: Terri Lindblom. (pglov) (Entered: 10/19/2017)
10/31/2017	122	Renewed MOTION for Writ of Habeas Corpus ad testificandum by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 10/31/2017)
11/02/2017	123	SUPPLEMENT/AMENDMENT to <i>Renewed Motion for Writ of Habeas Corpus Ad Testificandum</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 11/02/2017)
11/03/2017	124	ORDER Setting Hearing on 122 Renewed Motion for Writ of Habeas Corpus ad testificandum: Motion Hearing set for November 8, 2017, at 10:30 AM in Courtroom A901 before Chief Judge Marcia S. Krieger. The Court requests the United States Marshal appear by representative as well. By Chief Judge Marcia S. Krieger on 11/3/2017. Text-Only Entry (msklc3) (Entered: 11/03/2017)
11/06/2017	125	RESPONSE to 122 Renewed MOTION for Writ of Habeas Corpus ad testificandum filed by Defendant Hong Dang. (Alber, Christopher) (Entered: 11/06/2017)
11/08/2017	126	MINUTE ENTRY for Motion Hearing held before Chief Judge Marcia S. Krieger on 11/8/2017. 122 Motion for Writ of Habeas Corpus ad Testificandum is DENIED. Court Reporter: Julie Thomas. (pglov) (Entered: 11/08/2017)
12/05/2017	127	MOTION in Limine to <i>Exclude Evidence Regarding His Criminal History</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 12/05/2017)
12/13/2017	128	RESPONSE to 127 MOTION in Limine to <i>Exclude Evidence Regarding His Criminal History</i> filed by Defendant Hong Dang. (Alber, Christopher) (Entered: 12/13/2017)
12/14/2017	129	Witness List <i>Joint Witness List</i> by Plaintiff Aaron S. Rabidue. (Gilmer, Zane) (Entered: 12/14/2017)
12/14/2017	130	Exhibit List <i>Joint Exhibit List</i> by Plaintiff Aaron S. Rabidue. (Gilmer, Zane) (Entered: 12/14/2017)

12/19/2017	131	MINUTE ENTRY for Jury Trial Day One held before Chief Judge Marcia S. Krieger on 12/19/2017. The trial is VACATED and reset to 3/13-14/2018 08:30 AM in Courtroom A 901 before Chief Judge Marcia S. Krieger. Court Reporter: Terri Lindblom. (pglov) (Entered: 12/19/2017)
01/17/2018	132	ORDER: Due to an unavoidable conflict on the Court's calendar, the jury trial currently set in this case for March 13-14, 2018 must be vacated. The Court resets that trial to occur on March 28-29, 2018. By Chief Judge Marcia S. Krieger on 1/17/18. Text Only Entry (msklc2,) (Entered: 01/17/2018)
01/29/2018	133	Unopposed MOTION to Reset <i>Trial Date</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 01/29/2018)
01/30/2018	134	ORDER granting 133 Motion to Reset. Two-day Jury Trial is now set for April 16, 2018 08:30 AM in Courtroom A901 before Chief Judge Marcia S. Krieger. By Chief Judge Marcia S. Krieger on 1/30/2018. Text-Only Entry (msklc3) (Entered: 01/30/2018)
03/06/2018	135	ORDER: Due to an unavoidable conflict on the Court's calendar, the Court vacates the jury trial currently set for April 16 and 17, 2018, and resets that trial to occur on April 24 and 25, 2018. By Chief Judge Marcia S. Krieger on 3/6/18. Text Only Entry (msklc2,) (Entered: 03/06/2018)
04/02/2018	136	NOTICE of Certification regarding Plaintiff's Presence by way of Video during the Scheduled Trial by Defendant Hong Dang (Alber, Christopher) (Entered: 04/02/2018)
04/24/2018	137	MINUTE ENTRY for Jury Trial Day 1 held before Chief Judge Marcia S. Krieger on 4/24/2018. Jury trial is continued to 6/11-12/2018 08:30 AM in Courtroom A 901 before Chief Judge Marcia S. Krieger Court Reporter: Terri Lindblom. (pglov) (Entered: 04/24/2018)
06/01/2018	138	NOTICE of Change of Address/Contact Information of <i>Zane A. Gilmer</i> by Zane Allen Gilmer (Gilmer, Zane) (Entered: 06/01/2018)
06/04/2018	139	Joint MOTION for Writ of Habeas Corpus ad testificandum by Defendant Hong Dang. (Alber, Christopher) (Entered: 06/04/2018)
06/04/2018	140	ORDER granting 139 Motion for Writ of Habeas Corpus ad Testificandum: The Colorado Department of Corrections is directed to produce Mr. Rabidue for trial at the Alfred A. Arraj Courthouse, from 8:30 a.m. - 5:00 p.m. on June 11 and 12, 2018. The Colorado Department of Corrections shall retain responsibility for supervising Mr. Rabidue during trial proceedings, unless otherwise directed by the U.S. Marshal. By Chief Judge Marcia S. Krieger on 6/4/18. Text Only Entry (msklc2,) (Entered: 06/04/2018)
06/11/2018	141	MINUTE ENTRY for Jury Trial Day One held before Chief Judge Marcia S. Krieger on 6/11/2018. 127 Motion in Limine is GRANTED in part and DENIED in part. Trial continues. Court Reporter: Tamara Hoffschildt. (pglov) (Entered: 06/12/2018)
06/11/2018	142	Court's Draft Concluding Jury Instructions. (Attachments: # 1 Court's Proposed Verdict Form)(pglov) (Entered: 06/12/2018)
06/11/2018	143	Plaintiff's Tendered Jury Instructions. (pglov) (Entered: 06/12/2018)
06/12/2018	144	MINUTE ENTRY for jury Trial day Two held before Chief Judge Marcia S. Krieger and completed on 6/12/2018. JURY VERDICT. Court Reporter: Tamara Hoffschildt. (pglov) (Entered: 06/12/2018)
06/12/2018	145	JURY VERDICT REDACTED. (pglov) (Entered: 06/12/2018)

06/12/2018	146	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (pglov) (Entered: 06/12/2018)
06/12/2018	147	JUDGMENT in favor of Aaron S. Rabidue against Hong Dang by Chief Judge Marcia S. Krieger on 6/12/18. (pglov) (Entered: 06/12/2018)
06/18/2018	148	Unopposed MOTION for Extension of Time to <i>File Bill of Costs, Motion for Attorneys' Fees and Notice of Appeal</i> by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 06/18/2018)
06/19/2018	149	ORDER granting in part and denying in part 148 Motion for Extension of Time to File: The Court grants Mr. Rabidue's request to extend the deadline for filing a motion for attorney fees and Bill of Costs to July 26, 2018. The Court sees no good cause to extend the deadline for filing a Notice of Appeal. It is common for civil appeals of substantive issues to proceed while requests for fees or costs remain pending before the District Court. By Chief Judge Marcia S. Krieger on 6/19/18. Text Only Entry (msklc2,) (Entered: 06/19/2018)
07/25/2018	150	Unopposed MOTION for Attorney Fees by Plaintiff Aaron S. Rabidue. (Attachments: # 1 Declaration of Ryan M. Sugden)(Sugden, Ryan) (Entered: 07/25/2018)
07/25/2018	151	Proposed Bill of Costs by Plaintiff Aaron S. Rabidue. (Attachments: # 1 Exhibit Deposition Invoices, # 2 Exhibit Witness Fees, # 3 Exhibit Copies of Papers Necessarily Obtained, # 4 Exhibit Costs for Depositions, # 5 Exhibit Parking Costs Backup)(Sugden, Ryan) (Entered: 07/25/2018)
07/27/2018	152	ORDER granting 150 Motion for Attorney Fees: The Judgment is deemed amended to award Mr. Rabidue the total of \$375 in attorney fees. By Chief Judge Marcia S. Krieger on 7/27/18. Text Only Entry (msklc2,) (Entered: 07/27/2018)
09/06/2018	153	Costs Taxed by Clerk in the amount of \$2,712.18 against Defendant Hong Dang and in favor of Plaintiff Aaron S. Rabidue. Costs hearing held Sept. 6, 2018. (ebutl) (Entered: 09/06/2018)
01/07/2019	154	SATISFACTION OF JUDGMENT by Plaintiff Aaron S. Rabidue. (Sugden, Ryan) (Entered: 01/07/2019)

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